

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201702932	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 03/12/2017 5:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/12/2018	Precinct: 13		
Date/Time CV Reported Thu, 04/13/2017 1:21 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Thu, 04/13/2017 1:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Williams	24557	953571	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Gasiorek	03349	934909	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Williams	Off. Language: Police Officer Kevin Williams made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	A . Unsubstantiated
B . POM Kevin Williams	Discourtesy: Police Officer Kevin Williams spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Case Summary

This complaint was filed by § 87(2)(b) on April 13, 2017 with the CCRB by mail.

On March 12, 2017, at approximately 5:30 p.m., § 87(2)(b) was working at the § 87(2)(b) § 87(2)(a) Gen.Mun. §50-H(3) in Manhattan. PO Kevin Williams and PO James Gasiorek of the 110th Precinct went to the hospital to guard a prisoner. § 87(2)(b) and PO Williams became involved in a verbal dispute. PO Williams allegedly said, “Bitch, who the fuck do you think you are?” (**Allegation A-B**). No arrests or summonses resulted from this incident. There is no video that captures this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was suitable for mediation and it was offered to § 87(2)(b) over the phone and during her interview. § 87(2)(b) chose to have her complaint investigated.
- A notice of claim request was submitted to the NYC Office of the Comptroller and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR02).
- PO Williams has been a member of the service for five years, has no substantiated allegations, § 87(2)(g)

Potential Issues

- PO Williams and PO Gasiorek were guarding a prisoner during this incident. PO Williams and PO Gasiorek did not know the name of the prisoner. A search of BADS for arrests in the 110th Precinct in the days before the incident did not provide any clear indication of who the prisoner was. No statement could be obtained from this person because he could not be identified.

Findings and Recommendations

Allegation A – Offensive Language: Police Officer Kevin Williams made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation B – Discourtesy: Police Officer Kevin Williams spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that she was working in the § 87(2)(b) (BR03). PO Williams and PO Gasiorek entered the patient area § 87(2)(b) and relieved another officer who had been guarding a prisoner. Shortly afterwards, § 87(2)(b)'s attention was drawn to the officers because she saw a flashing light. § 87(2)(b) saw PO Williams taking pictures of the prisoner. § 87(2)(b) approached PO Williams and told him he was not allowed to take pictures

in the patient area. PO Williams ignored § 87(2)(b) and continued taking pictures. § 87(2)(b) repeated the instruction again. PO Williams began to question § 87(2)(b)'s authority. § 87(2)(b) reiterated the rules to PO Williams. § 87(2)(b) remained calm while speaking with PO Williams and did not raise her voice or argue because she knew she would be in violation of hospital employee policy if she did so. § 87(2)(b) asked the officers to leave the patient area. As § 87(2)(b) was escorting the officers out, PO Williams said, "Bitch, who the fuck do you think you are?" § 87(2)(b) told PO Williams, "This is my area. I asked you to step outside. You don't come in here and tell me how to run the show." § 87(2)(b) reiterated the rules to PO Williams. A supervisor came and spoke with PO Williams. § 87(2)(b) felt threatened and intimidated by PO Williams and believed he might try to choke her if he saw her again.

In an incident report generated by § 87(2)(b) § 87(2)(b) reported that there was a verbal altercation between herself and PO Williams over his cell phone usage in the patient observation area (BR04). No further details about the verbal altercation are noted in the report.

§ 87(2)(b) was identified as a witness from an incident report generated by § 87(2)(b) (BR05). § 87(2)(b) testified that he was involved with a patient when he heard a loud argument between § 87(2)(b) and PO Williams behind him. § 87(2)(b) seemed agitated because she was raising her voice at PO Williams. PO Williams had said something about having received a phone call. § 87(2)(b) asked the officers to leave the patient area and they did so immediately. § 87(2)(b) did not remember hearing any profanity and did not remember hearing any of the alleged remarks.

PO Williams and PO Gasiorek both testified that they relieved an officer who was guarding a prisoner at § 87(2)(b) (BR06-07). PO Williams received a call on his cell phone. When PO Williams receives a call the light on his phone flashes. § 87(2)(b) came over and began shouting at PO Williams. § 87(2)(b) asked the officers to leave the patient area and they complied in doing so. A hospital administrator came and it was agreed it would be best if PO Gasiorek guarded and fingerprinted the prisoner by himself while PO Williams remained outside of the patient area and delivered the fingerprints to One Police Plaza.

PO Williams testified that he got off of the phone and immediately left the patient area. PO Williams denied that he said anything to § 87(2)(b). PO Williams did not try to explain what was happening with his phone because § 87(2)(b) was yelling at him and he just wanted to leave the area. PO Williams denied making any of the alleged remarks.

§ 87(2)(g), PO Gasiorek testified that PO Williams and § 87(2)(b) were shouting at each other. The substance of the argument consisted of § 87(2)(b) telling PO Williams that he could not use his phone and take pictures in the hospital. PO Williams responded by trying to explain that he did not know about the cell phone policy and denying that he was taking pictures. PO Gasiorek denied that PO Williams made any of the alleged remarks.

Patrol Guide 203-09 states that officers must be "courteous and respectful" in their conduct with the public (BR08). PG 203-10 prohibits officers from using discourteous or disrespectful remarks

§ 87(2)(g)

Investigator:	Signature	Print	Date
Squad Leader:	Title/Signature	Print	Date
Reviewer:	Title/Signature	Print	Date